

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUPA024383: DANIEL GONZALES CARRILLO vs JACOB GABRIEL SKLAVER
06/18/2026 in Department 41**

**Motion for Summary Judgment and/or Adjudication of Plaintiff's Negligent Entrustment
Claim or in the Alternative, Adjudication of Plaintiff's Prayer for Punitive Damages**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

If you wish to submit on the Court's tentative decision without appearing, please send an email to the following address by 8:00 a.m. on the date of the hearing with counsel for all parties' copied on your email: courtroom41@ventura.courts.ca.gov Please state on the subject line of your email: "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative decision is subject to change.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

If you are an attorney or Pro Per and your case is on calendar, you can appear remotely by Zoom for Case Management Conferences and Law & Motion matters. You cannot appear remotely for trials or any matter where testimony or evidence is going to be admitted. This court no longer allows remote appearances by CourtCall. Zoom is the exclusive means by which counsel can appear remotely. Represented parties, interested persons, witnesses, and the public at large, cannot attend remotely. You cannot forward the Court's Zoom link to others so that they can attend remotely. Courtroom 41 is open to the public and such individuals can attend

by physically appearing in the courtroom. **While appearing remotely by Zoom, it is unlawful to video or audio record the proceedings or take screen shots/still photos of the proceedings.**

To appear remotely by Zoom, you must submit an email request to the Court by 4 p.m. the court day before your hearing to: courtroom41@ventura.courts.ca.gov, with a subject line that includes “NOTICE TO APPEAR VIA ZOOM.” Your email request must identify the name of the attorney/party who will appear by Zoom and all counsel/parties must be copied on your email request. When appearing by Zoom, you will need to mute yourself until your case is called at which point you will also have to turn on your camera. The court calendar begins at 9 a.m. Assuming you have given advance email notice the court day before your hearing of your intent to appear by Zoom, you may enter the Courtroom 41 Zoom waiting room at 8:15 a.m. on the day of your hearing through this link:

<https://ventura-courts-ca.zoom.us/j/81985625079?pwd=cHV2MENmWGNLSnJCMIM5Sk1xRk0vdz09>

For information about Judge DeNoce including his case management and trial rules, please visit: www.DeNoce.com

Tentative Decision:

For the reasons stated below, the hearings on both motions are continued to July 29, 2026, at 8:20 a.m. in Department 41.

After the motions were fully briefed, Defendants filed Notices of Errata on June 12 and June 15 relating to both motions and which purport to make “clerical corrections” or “correct the identification of the issue presented.” The Court disagrees with Defendants’ characterization of the effect of the Notices of Errata. The Notice of Errata as to Defendant Barry Sklaver’s motion for summary adjudication, which relates to the negligent entrustment claim against him and to punitive damages, adds an issue absent from the original separate statement. The Notice of Errata relating to the second motion for summary adjudication of punitive damages enlarges and

changes the scope of the issues presented. “The requirement of a separate statement from the moving party and a responding statement from the party opposing summary judgment serves two functions: to give the parties notice of the material facts at issue in the motion and to permit the trial court to focus on whether those facts are truly undisputed.” (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210; see also Cal. Rule of Court, rule 3.1350, subd. (d)(1) [requiring separate statements to *separately* identify matters in issue and their supporting facts].) When Plaintiff responded to Defendants’ original separate statements, he did not have notice of the issues set forth in the separate statements submitted with the Notices of Errata. Although Defendants do not assert new facts in support of the new or redefined issues, this does not mean that Plaintiff, in responding to the separate statements as modified, would take the same position in response. Accordingly, the Court is of the opinion that due process requires that Plaintiff be provided with an opportunity to review and consider the new separate statements and respond to them. (*San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.* (2002) 102 Cal.App.4th 308, 316 [“Where a remedy as drastic as summary judgment is involved, due process requires a party be fully advised of the issues to be addressed and be given adequate notice of what facts it must rebut in order to prevail.”].) And this court is entitled to have these issues fully briefed prior to the hearing.

Plaintiff’s revised separate statements, if any, must be served and filed on or before June 30, 2026. Any supplemental opposition in response to each motion is limited to five pages and must be served and filed on or before that same day. Defendants may serve and file a supplemental reply memorandum, limited to five pages, on or before July 12, 2026.

Counsel for Defendants is to give notice of the Court’s ruling.